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Three high-profile bills the California legislature will hear before session ends

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The California legislature is slated to hear a number of high-profile bills before the session ends in five weeks. Among those are a proposal to tax guns and ammunition, a ban on chemicals in food products including Skittles and other popular candies, and legislation to curb light pollution.

All three bills were heard in the Senate Appropriations Committee on Monday and placed in a suspense file, where the appropriations committees will review the fiscal impact of bills before going to the full floor.

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Firearms and ammunition excise tax

In an effort to implement significant changes to California's gun laws, one bill is proposing an 11% excise tax for the retail sale of firearms, firearm parts, and ammunition.

Assembly Bill 28, sponsored by Democratic Assemblyman Jesse Gabriel representing Woodland Hills, was originally introduced last year as part of gun violence prevention legislation.

The bill, known as the Gun Violence Prevention, Healing, and Recovery Act, is expected to provide $160 million annually from the taxes raised. Those funds would be allocated to a wide range of gun violence prevention programs through the California Treasury, and if passed, the policies would begin on July 1, 2024.

"It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States," Gabriel said in a press statement. "This bill will fund critical school safety measures and proven violence prevention programs that will save lives and protect communities across California."

Opponents of the legislation include the National Rifle Association, which deemed the bill "unjust" and urged people to contact committee members to express their opposition.

"A.B. 28 is nothing more than a discriminatory tax on the Second Amendment, penalizing law-abiding gun owners for exercising their constitutionally protected rights," NRA California Director Dan Reid told the Washington Examiner. "This tax unfairly targets law-abiding persons, forcing them to subsidize programs that, if funded, should be paid for by the taxpayers as a whole. If passed, the NRA is prepared to immediately pursue a legal challenge and is confident it will be struck down."

Food product safety

In another bill sponsored by Gabriel, this proposal would prevent the use of certain chemicals in food products. The legislation would bar California parties from manufacturing, distributing, or selling items with red dye No. 3, titanium dioxide, brominated vegetable oil potassium bromate, or propylparaben. The European Union has already banned these five food chemicals, minus red dye No. 3.

Assembly Bill 418 passed overwhelmingly in the California State Assembly in May, with the bill aiming to stop additive chemicals that have been linked to cancer, reproductive problems, developmental growth problems in children, and other health concerns.

"It's unacceptable that the U.S. is so far behind the rest of the world when it comes to banning these dangerous additives," Gabriel said in a press statement. "We don't love our children any less than they do in Europe, and it's not too much to ask food and beverage manufacturers to switch to the safer alternative ingredients that they already use in Europe and so many other nations around the globe."

A group of manufacturers of titanium dioxide has opposed A.B. 418, claiming the bill "unnecessarily politicizes'' the safety of the additives and undermines the process that determines the risks of the substances. The American Chemistry Council's Titanium Dioxide Stewardship Council said the bill "has the potential to disrupt the current process by which federal and state regulators review these products and could have far-reaching consequences for consumers and industry in California and across the country."

The Washington Examiner reached out to Gabriel's office regarding both sponsored bills.

Light pollution control

Aimed at mindful artificial light usage in California, Assembly Bill 38 was reintroduced to dim to glow from state buildings.

"I reintroduced A.B. 38 this year because of concerns related to the negative impacts of artificial light at night (ALAN)," Democratic Assemblyman Alex Lee said in a statement to the Washington Examiner. "Excess ALAN disrupts the circadian rhythm of animals, insects, plants, and people."

The legislation by Lee, representing San Jose, would create standards on all outdoor lighting fixtures installed by properties owned, managed, or leased by the state. Lee pointed to excess artificial light causing a distraction to birds, which could have negative effects on the ecosystem and deadly results for migrating birds.

"Seventy percent of bird species migrate each year, and of those birds, 80% migrate at night, using the night sky to help them navigate to and from their breeding ground," Lee said. "Unfortunately, every day in the U.S., there is an estimated 1 million birds that die from building or structure collisions due to ALAN."

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Gov. Gavin Newsom (D-CA) vetoed an older version of the light pollution bill sponsored by Lee in September, citing cost concerns that the state budget couldn't account for, which amounted to around $20 billion in upfront spending and over $10 billion in maintenance. Newsom said the legislation "raises concerns for health and safety," without clarifying any specific concerns.

"This is a commonsense proposal to promote safety for people, ecosystems, and wildlife while conserving energy and reducing our carbon footprint," Lee said.

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